BOOK 2810 PAGE 880

Johnston County, North Carolina
CRAIG OLIVE Register of Deeds
The following certificate(s) of
BRENDA H MCCULLEN
JOSEPH STEVE CREECH

notary/notaries public
is/are certified to be correct.
Sandra P Sullivan
~~Deputy~~ - Assistant - Register of Deeds

FILED
JOHNSTON COUNTY
CRAIG OLIVE
REGISTER OF DEEDS

FILED	Dec 09, 2004
AT	11:15:00 am
BOOK	02810
START PAGE	0880
END PAGE	0883
INSTRUMENT #	55136

Excise Tax 0.00

Recording: Time, Book and Page

Tax Lot No. _____ Parcel Identifier No.:

Verified By: _____ County on the ____ day of _____,_____.
By:_____

Mail after recording to: Hinton, Hewett & Wood, P.A., Post Office Box 369, Selma, NC 27576

This instrument prepared by: W. Kenneth Hinton (NO TITLE CERTIFICATION, TITLE EXAMINATION OR TAX ADVICE)

Brief Description for the Index: Tracts O'Neals township

NORTH CAROLINA GENERAL WARRANTY DEED

THIS DEED made this 1st day of December, 2004, by and between:

GRANTOR	GRANTEE
William Lexter Creech and wife, Leola C. Creech	Leola C. Creech 4735 Glendale Road Kenly, NC 27542

The designation Grantor and Grantee as used herein shall include said parties, their heirs, successors and assigns, and shall include singular, plural, masculine, feminine or neuter as required by context.

WITNESSETH, that the Grantors, for a valuable consideration paid by the Grantee, the receipt of which is hereby acknowledged, has and by these presents does grant, bargain, sell and convey unto the Grantee in fee simple, in that certain lot or parcel of land situated in O'Neals Township, Johnston County, North Carolina and more particularly described as follows:

See Exhibit "A" attached hereto and incorporated herein by reference as if fully set forth herein.

The purpose of this conveyance is to sever the tenancy by the entirety in the property described herein on Exhibit "A" pursuant to N.C.G.S. 39-13.3(c) (or in the alternative, to transfer ownership pursuant to N.C.G.S. 39-13(a) and to vest sole title in the name of Grantee and to allow Grantee to henceforth convey and encumber said property or any portion thereof without the consent or joinder of the Grantor. Grantor hereby relinquishes: (1) All rights to administer the Grantee's estate as provided in N.C.G.S. 28A-4-1 with respect to the real estate described herein; (2) all right of intestate succession to the Grantee's estate as provided in N.C.G.S. 29-14; (3) the right to an elective life estate in the Grantee's estate as provided in N.C.G.S. 29-30; (4) the right to dissent from Grantee's Will as provided in N.C.G.S. 30-1; and (5) the right to a year's allowance in the Grantee's estate as provided in N.C.G.S. 30-15. It is the intention of the parties hereto that the property described herein shall be considered separate property of the Grantee pursuant to the Equitable Distribution Act (N.C.G.S. 50-20) and Grantor relinquishes all right or claim to said property provided in said Act. This Deed is made pursuant to a Property Settlement Agreement between the parties hereto, and is for the valuable consideration set out in said Agreement.

The property hereinabove described was acquired by Grantor by instrument recorded in Book _____, page _____, Johnston County Registry.

A map showing the above described property is recorded in Plat Book _____ at page _____ of the _____ County Registry.

TO HAVE AND TO HOLD the aforesaid lot or parcel of land and all privileges and appurtenances thereto belonging to the Grantee in fee simple.

And the Grantor covenants with the Grantee, that Grantor is seized of the premises in fee simple, has the right to convey the same in fee simple, that title is marketable and free and clear of all encumbrances, and that Grantor will warrant and defend the title against the lawful claims of all persons whomsoever except for the exceptions hereinafter stated.

Title to the property hereinabove described is subject to the following exceptions:

1. 2004 Johnston County ad valorem taxes.
2. County/City zoning ordinances.
3. Restrictions of record.

IN WITNESS WHEREOF, the Grantors have hereunto set their hands and seals, or if corporate, has caused this instrument to be signed in its corporate name by its duly authorized officers and its seal to be hereunto affixed by authority of its Board of Directors, the day and year first above written.

William Lexter Creech (SEAL)
William Lexter Creech

Leola C. Creech (SEAL)
Leola C. Creech

STATE OF NORTH CAROLINA
COUNTY OF JOHNSTON

I, Brenda H. McCullen a Notary Public in and for the aforesaid County and State, do hereby certify that WILLIAM LEXTER CREECH personally appeared before me this day and acknowledged the due execution of the foregoing instrument. Witness my hand and notarial seal this the 8 day of December, 2004.

Brenda H. McCullen
Notary Public

BRENDA H. McCULLEN NOTARY PUBLIC WAYNE COUNTY, NC

My Commission Expires: 10-22-06

STATE OF NORTH CAROLINA
COUNTY OF JOHNSTON

I, Joseph Steve Creech a Notary Public in and for the aforesaid County and State, do hereby certify that LEOLA C. CREECH personally appeared before me this day and acknowledged the due execution of the foregoing instrument. Witness my hand and notarial seal this the 7 day of December, 2004.

Joseph Steve Creech
Notary Public

JOSEPH STEVE CREECH NOTARY PUBLIC JOHNSTON COUNTY, N.C.

My Commission Expires: 12-26-06

The foregoing certificate of _____, Notary Public, is certified to be correct. This instrument and this certificate are duly registered at the date and time and in the Book and Page shown on the first page hereof.

Johnston County Register of Deeds

By: _____
Deputy/Assistant

Exhibit "A"

TRACT ONE: (Parcel No. 11o03074)

Being a tract or parcel of land situated in O'Neals Township, Johnston County, North Carolina, and more particularly described as follows:

BEGINNING at an iron stake in the center of the path, common corner with Lot "G", Roby Renfrow, and the Mrs. D.A. Boykin Division; and the line runs thence along the center of said farm path North 84 deg. 35 min. West 711.3 feet to an iron stake in the center of said path; thence, continuing along the path, North 3 degrees 36 minutes East 24 feet to an iron stake near the well; thence, continuing along the center of said farm path, North 86 deg. 12 min. West 640 feet to an iron stake, corner with Ella Hogge; thence along the Ella Hogge and Alice N. Green lines North 3 deg. East 1504 feet to a stake on the run of Little Buffalo Swamp; thence down the run of Little Buffalo Swamp in a southeasterly direction 1530 feet to an iron stake, corner with the Mrs. D.A. Boykin division; thence along the Boykin line South 3 deg. West 835 feet to the point and place of beginning, containing thirty-nine and twelve one-hundredths (39.12) acres, more or less, according to a plat and survey by Boyd L. Shook, Registered Surveyor, dated November 5, 1964.

For further reference see Deed Book 643, page 487, Johnston County Registry)

TRACT TWO: (Parcel No. 11o03037b)

BEGINNING at a stake, corner of Lot No. 2, and Leonard Creech's line and runs North 6 deg. East 676 feet to a stake, Leonard Creech's corner; thence with said Creech's line North 83 deg. West 1700 feet to a hickory tree and J.B. Creech's corner; thence South 6 deg. West 624 feet to a stake, corner of Lot No. 2; thence with the line of Lot No. 2, South 81 ½ deg. East 1700 feet to the point of beginning, containing 25 ½ acres, more or less; it being the very same property conveyed to E. Jay Murray by deed of Ella Stancil Hogge and husband, Joe Hogge, dated August 20, 1973, and recorded in Book 758, page 142, Johnston County Registry.

There is excepted from this property any previous conveyances made by William Lexter Creech and wife, Leola Creech.

For further reference see Deed Book 1044, page 51, Johnston County Registry.

TRACT THREE: (Parcel No. 11k990121 & 11o03038f)

Situate in O'Neals Township, Johnston County, North Carolina bounded on the North by Little Buffalo Creek; on the East by the lands of Leonard Creech (now Lexter Creech), on the South by the lands of Joe Hogge and the lot of Elbert Batten, on the West by Creech Road to Stancil's Chapel; BEGINNING at a stake in the centerline of Creech Road common corner of Elbert Batten and Alice Green and runs thence along the centerline of said road approximately 675 feet to a point in Little Buffalo Creech; thence easterly along the meanders of said creek approximately 400 feet to the Leonard Creech (now Lexter Creech) line; thence South 03 deg. 30 min. West 1287 feet to a stake in the Joe Hogge line; thence North 86 deg. 30 min. West 317 feet to an axle Melvin Cooper corner; thence North 11 deg. 42 min. East 420 feet to an iron stake Elbert Batten corner; thence North 86 deg. 30 min. West 210 feet to the point and place of beginning, and being a part of that tract of land conveyed by James Narron and wife, Zillie Narron to Alice Green by deed of record in Book 529, page 481, Johnston County Registry and situate on the east side of the Creech Road to Stancil's Chapel.

For further reference see Deed Book 796, page 20 and Deed Book 779, page 716, Johnston County Registry.

(Exhibit "A" continued)

(Exhibit "A continued)

TRACT FOUR: (Parcel No. 11o03037)

Situate on the East side of State Road No. 1934 (Stancil's Chapel – Bethany Church Road) fronting 360 feet on said road and bounded on the North side by the lands of Melvin Cooper and Lexter Creech, on the East by the lands of Lexter Creech and on the south by the lands of E.J. Hogge Murray and it begins at a stake common corner of E. J. Hogge Murray with Melvin Cooper in the centerline of State Road No. 1934 and runs thence along the Melvin Cooper line and continuing along the Lexter Creech line in an easterly direction 549 feet to a stake; thence southerly along the Murray line with Lexter Creech 428 feet to a stake; thence a new line with E. J. Hogge Murray westerly 547 feet to a stake in the centerline of said road; thence along centerline of said road northerly 360 feet to the point and place of beginning, containing four (4) acres, more or less.

There is excepted from this property any previous conveyances made by William Lexter Creech and wife, Leola Creech.

For further reference see Deed Book 810, page 205, Johnston County Registry.

TRACT FIVE: (out of Parcel No. 11P02028)

Lying and being in O'neals Township, Johnston County, North Carolina and being more particularly described as follows:

BEGINNING at an iron pipe set on the western right-of-way of NCSR 2110, said iron pipe being located South 37 deg. 26 min. 08 sec. West 720.81 feet from a pk nail in the center of the intersection of NCSR 2110 and NCSR 2154 and being the place and point of BEGINNING; thence following the right-of-way of NCSR 2110 South 35 deg. 37 min. 27 sec. West 252.03 feet to an iron pipe set; thence leaving the right-of-way of NCSR 2110 North 48 deg. 33 min. 33 sec. West 197.07 feet to an iron pipe set; thence North 31 deg. 01 min. 21 sec. East 237.50 feet to an iron pipe set; thence South 53 deg. 07 min. 44 sec. East 215.16 feet to the place and point of BEGINNING and containing 1.15 acres, more or less.